

**SUBSTITUTE FOR
HOUSE BILL NO. 5120**

A bill to amend 1961 PA 236, entitled
"Revised judicature act of 1961,"
by amending section 2950 (MCL 600.2950), as amended by 2018 PA 146.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2950. (1) Except as otherwise provided in subsections
2 ~~(26) and (27)~~ **and (28)**, by commencing an independent action to
3 obtain relief under this section, by joining a claim to an action,
4 or by filing a motion in an action in which the petitioner and the
5 individual to be restrained or enjoined are parties, an individual
6 may petition the family division of circuit court to enter a
7 personal protection order to restrain or enjoin a spouse, a former
8 spouse, an individual with whom ~~he or she~~ **the petitioner** has had a
9 child in common, an individual with whom ~~he or she~~ **the petitioner**



1 has or has had a dating relationship, or an individual residing or
2 having resided in the same household as the petitioner from doing 1
3 or more of the following:

4 (a) Entering onto premises.

5 (b) Assaulting, attacking, beating, molesting, or wounding a
6 named individual.

7 (c) Threatening to kill or physically injure a named
8 individual.

9 (d) Removing minor children from the individual having legal
10 custody of the children, except as otherwise authorized by a
11 custody or parenting time order issued by a court of competent
12 jurisdiction.

13 (e) Purchasing or possessing a firearm.

14 (f) Interfering with petitioner's efforts to remove
15 petitioner's children or personal property from premises that are
16 solely owned or leased by the individual to be restrained or
17 enjoined.

18 (g) Interfering with petitioner at petitioner's place of
19 employment or education or engaging in conduct that impairs
20 petitioner's employment or educational relationship or environment.

21 (h) If the petitioner is a minor who has been the victim of
22 sexual assault, as that term is defined in section 2950a, by the
23 respondent and if the petitioner is enrolled in a public or
24 nonpublic school that operates any of grades K to 12, attending
25 school in the same building as the petitioner.

26 (i) Having access to information in records concerning a minor
27 child of both petitioner and respondent that will inform respondent
28 about the address or telephone number of petitioner and
29 petitioner's minor child or about petitioner's employment address.



(j) Engaging in conduct that is prohibited under section 411h or 411i of the Michigan penal code, 1931 PA 328, MCL 750.411h and 750.411i.

(k) Any of the following with the intent to cause the petitioner mental distress or to exert control over the petitioner with respect to an animal in which the petitioner has an ownership interest:

(i) Injuring, killing, torturing, neglecting, or threatening to injure, kill, torture, or neglect the animal. A restraining order that enjoins conduct under this subparagraph does not prohibit the lawful killing or other use of the animal as described in section ~~50(11)~~ **50(12)** of the Michigan penal code, 1931 PA 328, MCL 750.50.

(ii) Removing the animal from the petitioner's possession.

(iii) Retaining or obtaining possession of the animal.

(l) Any other specific act or conduct that imposes upon or interferes with personal liberty or that causes a reasonable apprehension of violence.

(2) If the respondent is a person who is issued a license to carry a concealed weapon and is required to carry a weapon as a condition of ~~his or her~~ employment, a police officer licensed or certified by the Michigan commission on law enforcement standards act, 1965 PA 203, MCL 28.601 to 28.615, a sheriff, a deputy sheriff or a member of the Michigan department of state police, a local corrections officer, department of corrections employee, or a federal law enforcement officer who carries a firearm during the normal course of ~~his or her~~ employment, the petitioner shall notify the court of the respondent's occupation before issuance of the personal protection order. This subsection does not apply to a petitioner who does not know the respondent's occupation.



1 (3) A petitioner may omit ~~his or her~~ **the petitioner's** address
2 of residence from documents filed with the court under this
3 section. If a petitioner omits ~~his or her~~ **the petitioner's** address
4 of residence, the petitioner shall provide the court with a mailing
5 address.

6 (4) The court shall issue a personal protection order under
7 this section if the court determines that there is reasonable cause
8 to believe that the individual to be restrained or enjoined may
9 commit 1 or more of the acts listed in subsection (1). In
10 determining whether reasonable cause exists, the court shall
11 consider all of the following:

12 (a) Testimony, documents, or other evidence offered in support
13 of the request for a personal protection order.

14 (b) Whether the individual to be restrained or enjoined has
15 previously committed or threatened to commit 1 or more of the acts
16 listed in subsection (1).

17 (5) A court shall not issue a personal protection order that
18 restrains or enjoins conduct described in subsection (1)(a) if all
19 of the following apply:

20 (a) The individual to be restrained or enjoined is not the
21 spouse of the moving party.

22 (b) The individual to be restrained or enjoined or the parent,
23 guardian, or custodian of the minor to be restrained or enjoined
24 has a property interest in the premises.

25 (c) The moving party or the parent, guardian, or custodian of
26 a minor petitioner has no property interest in the premises.

27 (6) A court shall not refuse to issue a personal protection
28 order solely because of the absence of any of the following:

29 (a) A police report.



1 (b) A medical report.

2 (c) A report or finding of an administrative agency.

3 (d) Physical signs of abuse or violence.

4 (7) If the court refuses to grant a personal protection order,
5 it shall state immediately in writing the specific reasons it
6 refused to issue a personal protection order. If a hearing is held,
7 the court shall also immediately state on the record the specific
8 reasons it refuses to issue a personal protection order.

9 (8) A court shall not issue a mutual personal protection
10 order. Correlative separate personal protection orders are
11 prohibited unless both parties have properly petitioned the court
12 under subsection (1).

13 (9) A personal protection order is effective and immediately
14 enforceable anywhere in this state after being signed by a judge.
15 Upon service, a personal protection order may also be enforced by
16 another state, an Indian tribe, or a territory of the United
17 States.

18 (10) The issuing court shall designate **in a personal**
19 **protection order a local entering authority or** law enforcement
20 agency that is responsible for entering ~~a personal protection the~~
21 order into the law enforcement information network as provided by
22 the C.J.I.S. policy council act, 1974 PA 163, MCL 28.211 to 28.215.

23 (11) **The issuing court shall designate in a personal**
24 **protection order the law enforcement agency that is responsible for**
25 **serving the order, and the petition and notice of hearing, if**
26 **applicable, on the respondent. The law enforcement agency**
27 **designated under this subsection must be an agency within whose**
28 **jurisdiction the respondent resides. This subsection does not bar**
29 **any other law enforcement agency or any legally competent adult who**



1 is not a party to the action from serving these documents.

2 (12) ~~(11)~~ A personal protection order must include all of the
3 following, to the extent practicable in a single form:

4 (a) A statement that the personal protection order has been
5 entered to restrain or enjoin conduct listed in the order and that
6 violation of the personal protection order will subject the
7 individual restrained or enjoined to 1 or more of the following:

8 (i) If the respondent is 17 years of age or older, immediate
9 arrest and the civil and criminal contempt powers of the court and,
10 if ~~he or she~~ **the respondent** is found guilty of criminal contempt,
11 imprisonment for not more than 93 days and a fine of not more than
12 \$500.00.

13 (ii) If the respondent is less than 17 years of age, immediate
14 apprehension or being taken into custody and the dispositional
15 alternatives listed in section 18 of chapter XIIIA of the probate
16 code of 1939, 1939 PA 288, MCL 712A.18.

17 (iii) If the respondent violates the personal protection order
18 in a jurisdiction other than this state, the enforcement procedures
19 and penalties of the state, Indian tribe, or United States
20 territory under whose jurisdiction the violation occurred.

21 (b) A statement that the personal protection order is
22 effective and immediately enforceable anywhere in this state after
23 being signed by a judge and that, upon service, a personal
24 protection order also may be enforced by another state, an Indian
25 tribe, or a territory of the United States.

26 (c) A statement listing the type or types of conduct enjoined.

27 (d) An expiration date stated clearly on the face of the
28 order.

29 (e) A statement that the personal protection order is



1 enforceable anywhere in this state by any law enforcement agency.

2 (f) The name of the law enforcement agency designated by the
3 court to enter the personal protection order into the law
4 enforcement information network.

5 (g) **The name of the law enforcement agency designated by the**
6 **court to serve the personal protection order on the respondent.**

7 (h) ~~(g)~~ For ex parte orders, a statement that the individual
8 restrained or enjoined may file a motion to modify or rescind the
9 personal protection order and request a hearing within 14 days
10 after the individual restrained or enjoined has been served or has
11 received actual notice of the order and that motion forms and
12 filing instructions are available from the clerk of the court.

13 (13) ~~(12)~~ A court shall issue an ex parte personal protection
14 order without written or oral notice to the individual restrained
15 or enjoined or ~~his or her~~ **the individual's** attorney if it clearly
16 appears from specific facts shown by a verified complaint, written
17 motion, or affidavit that immediate and irreparable injury, loss,
18 or damage will result from the delay required to effectuate notice
19 or that the notice will itself precipitate adverse action before a
20 personal protection order can be issued.

21 (14) ~~(13)~~ A personal protection order issued under subsection
22 ~~(12)~~ (13) is valid for not less than 182 days. The individual
23 restrained or enjoined may file a motion to modify or rescind the
24 personal protection order and request a hearing under the Michigan
25 court rules. A motion to modify or rescind the personal protection
26 order must be filed within 14 days after the order is served or
27 after the individual restrained or enjoined has received actual
28 notice of the personal protection order unless good cause is shown
29 for filing the motion after the 14 days have elapsed.



(15) ~~(14)~~ Except as otherwise provided in this subsection, the court shall schedule a hearing on a motion to modify or rescind the ex parte personal protection order within 14 days after the motion is filed. If the respondent is a person described in subsection (2) and the personal protection order prohibits ~~him or her~~ **the person** from purchasing or possessing a firearm, the court shall schedule a hearing on the motion to modify or rescind the ex parte personal protection order ~~within~~ **not later than** 5 days after the motion is filed.

(16) ~~(15)~~ The clerk of the court that issues a personal protection order shall do all of the following immediately upon issuance and without requiring a proof of service on the individual restrained or enjoined:

(a) ~~File~~ **Transmit** a true copy of the personal protection order ~~with~~ **to** the law enforcement agency **or agencies** designated by the court in the personal protection order **under subsections (10) and (11)**.

(b) Provide the petitioner with 2 or more true copies of the personal protection order **at no cost to the petitioner**.

(c) **Inform the petitioner that the personal protection order and the petition and notice of hearing, if applicable, must be served as soon as practicable but not later than 72 hours after issuance by the law enforcement agency designated by the court under subsection (11), and will be served at no cost to the petitioner if money in the personal protection order service fund has not been fully expended.**

(d) ~~(e)~~ If the respondent is identified in the pleadings as a law enforcement officer, notify the officer's employing law enforcement agency, if known, about the existence of the personal



1 protection order.

2 (e) ~~(d)~~ If the personal protection order prohibits the
3 respondent from purchasing or possessing a firearm, notify the
4 county clerk of the respondent's county of residence about the
5 existence and contents of the personal protection order.

6 (f) ~~(e)~~ If the respondent is identified in the pleadings as a
7 department of corrections employee, notify the state department of
8 corrections about the existence of the personal protection order.

9 (g) ~~(f)~~ If the respondent is identified in the pleadings as
10 being a person who may have access to information concerning the
11 petitioner or a child of the petitioner or respondent and that
12 information is contained in friend of the court records, notify the
13 friend of the court for the county in which the information is
14 located about the existence of the personal protection order.

15 (17) ~~(16)~~ The clerk of the court shall inform the petitioner
16 that ~~he or she~~ **the petitioner** may take a true copy of the personal
17 protection order to the law enforcement agency designated by the
18 court under subsection ~~(10)~~ **(11)** to be immediately entered into the
19 law enforcement information network.

20 (18) ~~(17)~~ The law enforcement agency that receives a true copy
21 of a personal protection order under subsection ~~(15)~~ ~~or~~ (16) **or**
22 (17) shall immediately and without requiring proof of service enter
23 the personal protection order into the law enforcement information
24 network as provided by the C.J.I.S. policy council act, 1974 PA
25 163, MCL 28.211 to 28.215.

26 (19) ~~(18)~~ A personal protection order issued under this
27 section must be served ~~personally or by registered or certified~~
28 ~~mail, return receipt requested, delivery restricted to the~~
29 ~~addressee at the last known address or addresses of the individual~~



~~restrained or enjoined or by any other manner allowed by the Michigan court rules. as provided in section 2950d.~~ If the individual restrained or enjoined has not been served, a law enforcement officer or clerk of the court who knows that a personal protection order exists may, at any time, serve the individual restrained or enjoined with a true copy of the order or advise the individual restrained or enjoined of the existence of the personal protection order, the specific conduct enjoined, the penalties for violating the order, and where the individual restrained or enjoined may obtain a copy of the order. ~~If the respondent is less than 18 years of age, the parent, guardian, or custodian of the individual must also be served personally or by registered or certified mail, return receipt requested, delivery restricted to the addressee at the last known address or addresses of the parent, guardian, or custodian.~~ A proof of service or proof of oral notice must be filed with the clerk of the court issuing the personal protection order. This subsection does not prohibit the immediate effectiveness of a personal protection order or its immediate enforcement under subsections ~~(21) and (22)~~ **and (23)**.

(20) ~~(19)~~ The clerk of the court that issued the personal protection order shall immediately notify the law enforcement agency that received the personal protection order under subsection ~~(15) or (16)~~ **or (17)** if either of the following occurs:

(a) The clerk of the court receives proof that the individual restrained or enjoined has been served. **This subdivision does not apply if the law enforcement agency that received the personal protection order serves the personal protection order.**

(b) The personal protection order is rescinded, modified, or extended by court order.



1 **(21)** ~~(20)~~—The law enforcement agency that receives information
2 under subsection ~~(19)~~—**(20)** shall enter the information or cause the
3 information to be entered into the law enforcement information
4 network as provided by the C.J.I.S. policy council act, 1974 PA
5 163, MCL 28.211 to 28.215.

6 **(22)** ~~(21)~~—Subject to subsection ~~(22)~~,—**(23)**, a personal
7 protection order is immediately enforceable anywhere in this state
8 by any law enforcement agency that has received a true copy of the
9 order, is shown a copy of it, or has verified its existence on the
10 law enforcement information network as provided by the C.J.I.S.
11 policy council act, 1974 PA 163, MCL 28.211 to 28.215.

12 **(23)** ~~(22)~~—If the individual restrained or enjoined has not
13 been served, a law enforcement agency or officer responding to a
14 call alleging a violation of a personal protection order shall
15 serve the individual restrained or enjoined with a true copy of the
16 order or advise the individual restrained or enjoined of the
17 existence of the personal protection order, the specific conduct
18 enjoined, the penalties for violating the order, and where the
19 individual restrained or enjoined may obtain a copy of the order.
20 The law enforcement officer shall enforce the personal protection
21 order and immediately enter or cause to be entered into the law
22 enforcement information network that the individual restrained or
23 enjoined has actual notice of the personal protection order. The
24 law enforcement officer also shall file a proof of service or proof
25 of oral notice with the clerk of the court issuing the personal
26 protection order. If the individual restrained or enjoined has not
27 received notice of the personal protection order, the individual
28 restrained or enjoined must be given an opportunity to comply with
29 the personal protection order before the law enforcement officer



1 makes a custodial arrest for violation of the personal protection
 2 order. The failure to immediately comply with the personal
 3 protection order is grounds for an immediate custodial arrest. This
 4 subsection does not preclude an arrest under section 15 or 15a of
 5 chapter IV of the code of criminal procedure, 1927 PA 175, MCL
 6 764.15 and 764.15a, or a proceeding under section 14 of chapter
 7 XIIIA of the probate code of 1939, 1939 PA 288, MCL 712A.14.

8 **(24)** ~~(23)~~—An individual who is 17 years of age or older and
 9 who refuses or fails to comply with a personal protection order
 10 under this section is subject to the criminal contempt powers of
 11 the court and, if found guilty, must be imprisoned for not more
 12 than 93 days and may be fined not more than \$500.00. An individual
 13 who is less than 17 years of age and who refuses or fails to comply
 14 with a personal protection order issued under this section is
 15 subject to the dispositional alternatives listed in section 18 of
 16 chapter XIIIA of the probate code of 1939, 1939 PA 288, MCL 712A.18.
 17 The criminal penalty provided under this section may be imposed in
 18 addition to a penalty that may be imposed for another criminal
 19 offense arising from the same conduct.

20 **(25)** ~~(24)~~—An individual who knowingly and intentionally makes
 21 a false statement to the court in support of ~~his or her~~ **the**
 22 **individual's** petition for a personal protection order is subject to
 23 the contempt powers of the court.

24 **(26)** ~~(25)~~—A personal protection order issued under this
 25 section is also enforceable under section 15b of chapter IV of the
 26 code of criminal procedure, 1927 PA 175, MCL 764.15b, and chapter
 27 17.

28 **(27)** ~~(26)~~—A court shall not issue a personal protection order
 29 that restrains or enjoins conduct described in subsection (1) if



1 any of the following apply:

2 (a) The respondent is the unemancipated minor child of the
3 petitioner.

4 (b) The petitioner is the unemancipated minor child of the
5 respondent.

6 (c) The respondent is a minor child less than 10 years of age.

7 **(28)** ~~(27)~~—If the respondent is less than 18 years of age,
8 issuance of a personal protection order under this section is
9 subject to chapter XIIIA of the probate code of 1939, 1939 PA 288,
10 MCL 712A.1 to 712A.32.

11 **(29)** ~~(28)~~—A personal protection order that is issued before
12 March 1, 1999 is not invalid on the ground that it does not comply
13 with 1 or more of the requirements added by 1998 PA 477.

14 **(30)** ~~(29)~~—For purposes of subsection (1)(k), a petitioner has
15 an ownership interest in an animal if 1 or more of the following
16 are applicable:

17 (a) The petitioner has a right of property in the animal.

18 (b) The petitioner keeps or harbors the animal.

19 (c) The animal is in the petitioner's care.

20 (d) The petitioner permits the animal to remain on or about
21 premises occupied by the petitioner.

22 **(31)** ~~(30)~~—As used in this section:

23 (a) "Dating relationship" means frequent, intimate
24 associations primarily characterized by the expectation of
25 affectional involvement. Dating relationship does not include a
26 casual relationship or an ordinary fraternization between 2
27 individuals in a business or social context.

28 (b) "Federal law enforcement officer" means an officer or
29 agent employed by a law enforcement agency of the United States



1 government whose primary responsibility is the enforcement of laws
2 of the United States.

3 (c) "Neglect" means that term as defined in section 50 of the
4 Michigan penal code, 1931 PA 328, MCL 750.50.

5 (d) "Personal protection order" means an injunctive order
6 issued by the family division of circuit court restraining or
7 enjoining activity and individuals listed in subsection (1).

8 Enacting section 1. This amendatory act does not take effect
9 unless all of the following bills of the 103rd Legislature are
10 enacted into law:

11 (a) House Bill No. 5121.

12 (b) House Bill No. 6033.